

19WLC39774 19WLC39774

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-07-02

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CY%2C07%2F02%2F2026

Source SHA-256: fdf71ed8834fc982b4c8e616199e8433a85cf33de2c48fc0b524e627d81cd585

Case Number: 19WLC39774 Hearing Date: July 2, 2026 Dept: Y

19NWLC39774: PORTFOLIO RECOVERY ASSOCIATES, LLC vs SYLVIA RIVERA

Tentative Ruling:

The Court has read and reviewed the moving papers filed by Defendant Sylvia Rivera ("Defendant"), including the supporting declaration. It is unclear whether Defendant's Motion to Vacate Void Judgment ("Motion") has been served on Plaintiff Portfolio Recovery Associates, LLC ("Plaintiff"). Defendant did not file a Proof of Service of the Motion on Plaintiff and no opposition was filed by Plaintiff.

Code of Civil Procedure section 1005 requires that "all moving and supporting papers shall be served and filed at least 16 court days before the hearing. . . . if the notice is served by mail, the required 16-day period of notice before the hearing shall be increased by five calendar days if the place of mailing and place of address are within the State of California." It is unclear whether proper notice of the motion has been given.

The Court continues the hearing on the motion to August 3, 2026 at 10:30 a.m. in Dept. Y so that proper notice of the motion can be given to Plaintiff.

Defendant is ordered to serve a copy of her Motion on counsel for Plaintiff and file Proof of Service. To the extent the Motion was served on counsel for Plaintiff, Defendant may file a Proof of Service.